



File No.: EXP202307703

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) on May 31, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant states that he is a neighbor of a property adjacent to that of the respondent and that the respondent has installed, on his property, a dome-type video surveillance camera which, due to its location and orientation, is capable of capturing images of his home, and that the aforementioned camera is not properly signposted as it lacks the required informational signs for the monitored area. Along with the notification, images of the location of the complained camera are provided, showing the direction of the camera's focus in the submitted night images.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The act of forwarding and request for information was notified to the respondent on June 20, 2023, via postal service, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery receipt in the file.

The respondent replied on August 2, 2023, stating that the system consists of 6 cameras, four of which are external and two internal, and that they only capture images of the respondent's property, thus they do not have to comply with the obligation to provide information. The images are viewed through an app on a mobile device with a username and password, and the images are stored for a period of 15 days. The purpose of the system is the security of the home and its inhabitants.

They provided photographs of the cameras and images of their field of vision, in which it is noted that three of the external cameras are capturing beyond the private property of the respondent, as they do not have privacy masks as indicated by the respondent in their reply. The camera referred to as camera 2 includes part of the neighboring house in the upper right side. The other two cameras capture images of areas outside the respondent's property; neighboring houses are not visible, but in this case, they would be obliged to comply with the duty of information through the appropriate informational signs.

THIRD: On August 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On February 6, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on February 26, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On March 8, 2024, a written statement of allegations was received from the respondent in which, in summary, the following considerations are made:

"...that despite not sharing the Agency's criterion for distorting the purpose of the cameras, the data controller has proceeded to digitally mask them...

...we understand that, with the masking carried out, it is sufficient to conclude that the images captured by the security cameras do not invade foreign or public space...

...there are the corresponding informational signs required by Article 13 at the residence of the data controller...

In compliance with the obligation to have information available to the affected parties, aside from the information contained in the informational sign, the client also has the corresponding informational brochures..."

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present proceeding,

PROVEN FACTS

FIRST: On May 31, 2023, the date of the complaint, the respondent had installed a video surveillance system in which a video surveillance camera was observed that, due to the direction of its focus, was capable of capturing images of the claimant's residence, according to the submitted photos.

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SECOND: On 02/08/23, the responding party answered the notification of the claim by providing photographs from the cameras and images from their field of vision, which showed that three of the external cameras (the system consists of six cameras, four external and two internal) were capturing images beyond the private property of the responding party. It was also noted that there was already an informational sign, but it lacked the necessary information, according to the submitted photograph.

THIRD: As of 08/03/2024, privacy masks had been introduced, an informational sign had been placed that included the necessary information, and an informational brochure was available, as evidenced by the photos submitted in the allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations made

Regarding the allegations made against the initiation agreement of this warning procedure, described in the factual background SIXTH, this Agency has nothing to add, given that the responding party has adopted measures concerning the cameras located on their property, although it is true that at the time of the claim those cameras were improperly capturing images outside their property and did not have the required informational sign.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and, therefore, its protection is subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Unfulfilled obligations

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

This means that in a specific processing, only the relevant personal data that are necessary to fulfill the purpose for which they are processed may be processed.

The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum necessary portion to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

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Images in spaces owned by third parties cannot be captured or recorded without the consent of their owners, or, where applicable, of the individuals present in those spaces. Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or employee break areas.

For its part, Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference

to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

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3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In the present case, images of public spaces were being captured without the appropriate informational signage.

V

Data Protection Regulation

Article 6.1 of the GDPR regarding the lawfulness of processing states:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as

their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information specified in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the...

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The LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR. It is not necessary to specify the precise location of the video surveillance equipment. This duty of information will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. In the event that the monitored space has several entrances, such a sign indicating the video surveillance area must be placed at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR, highlighting the principle of data minimization extensively developed in the previous section.

VI

Classification and Qualification of the Violations

In accordance with the evidence available at this moment in the resolution of the warning procedure, it is considered that the respondent has committed the following violations of the current regulations on data protection and video surveillance:

1. Violation of the data minimization principle provided for in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed," as they provide photographs from the cameras and images of their field of vision, in which it is observed that three of the external cameras were capturing beyond the private property of the respondent, as they did not have privacy masks as indicated in their response. The so-called camera 2 includes part of the neighboring house in the upper right side.
2. Violation of the information duties regarding data provided for in Article 13 of the GDPR, in accordance with Article 22 of the LOPDGDD, as there were cameras capturing images of areas outside the property of the respondent; neighboring houses were not visible, but in this case, they were obliged to comply with the duty of information through appropriate informative signs.

The facts constitute a violation, attributable to the respondent, according to the provisions of Articles 5.1.c) and 13 of the GDPR, transcribed in Recital IV.

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For the purposes of the statute of limitations for the violations, the alleged violations expire after three years, in accordance with Article 72.1.a and 72.1.h. of the LOPDGDD, which classifies the following behaviors as very serious:

“a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

“h) The omission of the duty to inform the affected individual about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.”

VII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” provides in its third paragraph that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the file of actions shall occur.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In this case, once all the documentation in the file has been analyzed, it is considered lawful to issue a warning to the respondent for the violation of Articles 5.1.c and 13 of the GDPR, although it is true that the situation would have been resolved as stated in the allegations; currently, the video surveillance system would not be capturing space outside the property of the respondent, as it did previously to the initiation agreement.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for the violations of articles 5.1.c) and 13 of the GDPR, classified under article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm

resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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